

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Judgment

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Entered July 9, 2026

In accordance with the published panel opinion entered today, the court adjudges the appeal through four distinct components:

1. The district court's grant of judgment as a matter of law on mitigation is **reversed**.
2. The district court's conditional grant of a Rule 59 new trial on damages is **affirmed**.
3. The limitation of that conditional new trial to gross damages and mitigation, with liability and causation retained, is **affirmed**.
4. The December 15, 2025 amended judgment is **vacated**, and the action is **remanded** to the Western District of North Carolina for the damages retrial described in the opinion.

This judgment does not direct immediate reinstatement or payment of the October 15, 2025 \$3,900,000 original judgment. It also does not preserve the \$2,700,000 amended amount. Under Rule 50(c)(2), the affirmed conditional trial becomes operative when the reversed JMOL no longer controls. The district court will enter a new judgment after the limited retrial.

Entered at the direction of Composite Jurist March, Composite Jurist Rowan, and Composite Jurist Slate. The Fictional Fourth Circuit exercise clerk shall provide electronic notice to all counsel.

Effect, rehearing period, and mandate

The remand is limited. The district court and the parties must treat contract liability and shipment causation as settled. The retrial will determine gross damages and Granite Heron's asserted mitigation deduction together. Nothing in this judgment prescribes a minimum or maximum deduction, endorses either expert's model, or makes a finding about the factual success of an alternate campaign.

A petition for panel rehearing or rehearing en banc is governed by Federal Rule of Appellate Procedure 40. Because no United States party appears, the ordinary fourteen-day period runs from entry of judgment. Excluding the July 9 event date, that period ends July 23, 2026. A timely petition or a court order may affect the mandate schedule; a party seeking a stay must obtain relief under the applicable rules.

Absent a timely petition, stay, or order changing the schedule, Federal Rule of Appellate Procedure 41(b) provides for mandate seven days after the time to petition for rehearing expires. On the present calendar, that ordinary date is July 30, 2026. The clerk's later release and mandate documents will confirm whether the prerequisites remain satisfied.

This judgment and the accompanying opinion constitute the appellate decision. A later mandate transmits them and returns authority for proceedings; it does not add a fifth merits component or alter the four rulings stated above. Entered by the Fictional Fourth Circuit exercise clerk on July 9, 2026.